



CHAPTER xii.

An Act to authorise the Great Central Railway Company to use certain lands for railway purposes to extend the time for the compulsory purchase of lands and for the completion of works to enable the Company to raise further capital and for other purposes.

A.D. 1915.

[19th May 1915.]

WHEREAS it is expedient that the Great Central Railway Company (hereinafter referred to as "the Company") should be authorised to use for railway purposes the lands hereinafter described and that the expenditure of money by and on behalf of the Company on the purchase of the said lands should be confirmed :

And whereas it is expedient that the times limited for the compulsory purchase by the Company alone or jointly with other companies of the lands hereinafter mentioned and for the completion of works hereinafter mentioned should be extended as hereinafter provided :

And whereas the Company have been authorised by the Acts of Parliament mentioned in the schedule to this Act (hereinafter referred to as "the recited Acts") to create and issue three and a half per centum second debenture stock to the amount specified in those Acts and it is expedient that the said amount should be further increased in order that the Company may be enabled to provide further accommodation on their railways for the traffic thereon :

And whereas it is expedient that the Company should be authorised to issue second debenture stock subject to the condition that the same shall be redeemed :

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And whereas the Company have obtained the consent of the Treasury to the issue of the second debenture stock authorised by this Act:

And whereas the Company in pursuance of powers in that behalf conferred upon them by Acts of Parliament relating to the Mansfield Railway Company (hereinafter referred to as "the Mansfield Company") have entered into an agreement with that company to work the Mansfield Railway and it is expedient that the Company should be authorised to subscribe for shares in and stock in the capital of the Mansfield Company:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Great Central Railway Act 1915.

Incorporation of Acts.

2. The Railways Clauses Consolidation Act 1845 and Part II. (relating to extension of time) of the Railways Clauses Act 1863 and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 are except where expressly varied by this Act incorporated with and form part of this Act.

Company may hold certain lands already acquired.

3. The Company may hold and may use and appropriate for the general and other purposes connected with their undertaking so much of the following lands as may have been or may hereafter be acquired by them by agreement or on their behalf and are delineated and coloured red on plans signed in duplicate by the Right Honourable John Henry Whitley the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plans has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments of the House of Lords and the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed Provided that the said lands so acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section

The lands above referred to and by this section authorised to be held used and appropriated are as follows:— A.D. 1915.

In the county of Derby—

Certain strips of land situate in the parishes of Beighton and Killamarsh adjoining both sides of the railway of the Company between Woodhouse and Killamarsh and bounded by lands belonging or reputed to belong to Earl Manvers:

In the county of Flint—

Certain lands in the township of Estyn in the parish of Hope being parts of the enclosures numbered 1091 and 1564 on sheet XVII.—6 and 7 (scale $\frac{1}{2500}$) edition of 1912 and lying near to the public road leading from Mold to Hope:

In the county of Lincoln—

A strip of land situate in the parishes of Brumby and Frodingham on the west side of and adjoining the public road leading to Gunness and being part of the enclosure numbered 5 in the parish of Brumby and part of the enclosure numbered 17 in the parish of Frodingham shown upon the ordnance map of the county of Lincoln (Parts of Lindsey) sheet XVIII.—1 (scale $\frac{1}{2500}$) 2nd edition dated 1907;

Certain strips of land in the parish of Scunthorpe situate on the northern and southern sides of and adjoining the railway of the Company between Frodingham and Appleby and bounded by lands belonging or reputed to belong to Baron St. Oswald:

In the county of York (West Riding)—

Certain lands in the parish of Ecclesfield situate on the western side of Station Road Oughtibridge near the Oughtibridge Station of the Company and bounded on the north south and west sides thereof by land belonging or reputed to belong to the Duke of Norfolk;

Certain lands situate at Neepsend in the city of Sheffield bounded on the north by land belonging or reputed to belong to the Sheffield Corporation on the south by land belonging or reputed to belong to Jno. Hy. Andrew & Company Limited on the east by the railway of the Company and on the west by land belonging or reputed to belong to Lady Burgoyne's trustees;

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Certain lands in the township and parish of Rotherham together with the buildings thereon the said lands being bounded on the north-east by land belonging or reputed to belong to the Earl Fitzwilliam on the north-west by a proposed new road on the west partly by the public road leading from Rotherham to Greasborough on the south by the works of Messrs. E. Cottam & Co. and on the south-east by the railway of the Company between Rotherham and Rotherham Road stations ;

Certain lands situate in the parishes of Rawmarsh and Greasborough near to and on the eastern side of the Rotherham Road Station of the Company and adjoining the railway of the Company on the north-west side thereof.

Extension of time for compulsory purchase of lands for railway and widenings authorised by Great Central Railway Act 1912.

4. The time limited by section 86 of the Great Central Railway Act 1912 for the compulsory powers for the purchase of the lands required for the railway at Brierley Colliery and the widenings of Railways Nos. 1 2 and 3 (Kilnhurst to Doncaster) and the diversion of the River Don described in and authorised by section 5 of that Act is hereby extended and the said powers may be exercised for a period of two years from the seventh day of August one thousand nine hundred and fifteen and at the expiration of that period those powers shall cease.

Extension of time for compulsory purchase of lands for Grimsby Fish Dock Extension.

5. The time limited by section 21 of the Great Central Railway (Grimsby Fish Dock) Act 1912 for the compulsory powers for the purchase of the lands required for the works authorised by and described in section 4 of that Act is hereby extended and the said powers may be exercised for a period of two years from the thirteenth day of December one thousand nine hundred and fifteen and at the expiration of that period those powers shall cease.

Extension of time for completion of railway at South Elmsall.

6. The time limited by section 80 of the Great Northern Railway Act 1911 for the completion of the Railway No. 8 at South Elmsall authorised by and described in section 63 of the Great Central Railway Act 1907 is hereby extended for a period of three years from the twenty-sixth day of July one thousand nine hundred and fifteen and at the expiration of that period the powers for the completion of the said railway shall cease except as to so much thereof as is then completed.

7. The time limited by section 18 of the Metropolitan Railway Act 1912 for the compulsory powers for the purchase of lands required for Railways Nos. 2 and 3 described in and authorised by section 5 of that Act is hereby extended and the said powers may be exercised for a period of two years from the seventh day of August one thousand nine hundred and fifteen.

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Extension of time for compulsory purchase of lands for Metropolitan and Great Central Railways.

8.—(1) From and after the passing of this Act the amount of three and a half per centum second debenture stock which the Company are by the recited Acts authorised to create and issue shall be increased by the addition thereto of seven hundred and fifty thousand pounds.

Company may issue additional second debenture stock.

(2) All second debenture stock created and issued by the Company in pursuance of this section shall rank *pari passu* with all second debenture stock of the Company created and issued or to be created and issued under the authority of the recited Acts and shall except as by this Act otherwise expressly provided be deemed for all purposes to have been authorised by the Great Central Railway Act 1900.

9. The directors of the Company may from time to time notwithstanding the provisions of any Act of Parliament relating to the Company and without any further authority than is given by this section issue any portion of the second debenture stock authorised to be raised by this or any previous Act subject to the conditions that the same shall be redeemed by the Company at such times and in such manner and on such terms and conditions as shall be expressed on the certificates of such second debenture stock and it shall be lawful for the directors of the Company for the purposes of such redemption from time to time to issue new shares or new stock whether ordinary or preference or new second debenture stock and as regards any preference shares or stock or second debenture stock whether redeemable or otherwise for a nominal amount not exceeding the nominal amount of any redeemable second debenture stock which may have been redeemed.

Company may issue second debenture stock as redeemable stock.

10. The moneys arising from the creation and issue of the additional second debenture stock shall be applied by the Company for the general purposes of their undertaking being in all cases purposes to which capital is properly applicable.

Application of money raised by issue of debenture stock.

11. No interest or dividend shall be paid out of any money which the Company are by this Act authorised to raise to the holder of debenture stock on the amount of any calls made in

Interest on calls not to be paid out of capital.

A.D. 1915. — respect of the debenture stock held by him but nothing in this Act shall prevent such Company from paying to such holder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for future Bills not to be paid out of capital.

12. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Power to Company to subscribe to undertaking of Mansfield Railway Company and to apply funds for that purpose.

13. The Company may with the authority of three-fourths of the votes of their shareholders present in person or by proxy at a general meeting of the Company specially convened with notice of the object subscribe such moneys as they may think fit towards the undertaking of the Mansfield Company not exceeding in the whole twenty-five thousand pounds and the Company may with the like authority contribute and apply in or towards payment of their said subscription any moneys authorised to be raised by this Act and any moneys which they are already authorised to raise and which may not be required by them for the purposes of their undertaking and the Company shall in respect of the sums to be subscribed and the corresponding shares in the Mansfield Company to be held by them have all the powers rights and privileges (except in regard to voting at general meetings which shall be as hereinafter provided) and be subject to all the obligations and liabilities of proprietors of shares in the Mansfield Company Provided always that the Company shall not sell dispose of or transfer any of the shares in the Mansfield Company for which they may subscribe.

Votes of Company at general meetings of Mansfield Railway Company.

14. The Company whilst shareholders of the Mansfield Company may by writing under their common seal from time to time appoint some person to attend any meeting of the Mansfield Company and such person shall have all the privileges and powers attaching to a shareholder of the Company at such meetings and may vote thereat in respect of the capital held by the Company.

Provision as to general Railway Acts.

15. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general

Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken on the railways of the Company. A.D. 1915.

16. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

The SCHEDULE referred to in the foregoing Act.

ACTS OF PARLIAMENT AUTHORISING THE ISSUE OF SECOND
DEBENTURE STOCK.

Great Central Railway Act 1900	-	-	-	Section 30.
Great Central Railway Act 1904	-	-	-	Section 128.
Great Central Railway Act 1905	-	-	-	Section 79.
Great Central and Derbyshire Railways Act 1906	-	-	-	Section 21.
Great Central Railway Act 1907	-	-	-	Section 91.
Great Central Railway (Various Powers) Act 1909	-	-	-	Section 67.
Great Central Railway Act 1912	-	-	-	Section 101.
Great Central Railway (Grimsby Fish Dock) Act 1912	-	-	-	Section 29.

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